

MEMORANDUM OF AGREEMENT BETWEEN
HEADQUARTERS, DEPARTMENT OF THE ARMY,
AND

SUBJECT: Credentialing Assistance Program

1. Preamble:

a. Providing access to quality credentialing opportunities is a strategic investment that enhances a Soldier's ability to support mission accomplishment and successfully return to civilian life. A forward-leaning, lifelong learning environment is fundamental to the maintenance of a mentally powerful and adaptive leadership ready force. Today's fast-paced and highly mobile environment, where frequent deployments and mobilizations are required to support the Nation's policies and objectives, requires the Department of the Army (DA) to sponsor credentialing programs using a variety of learning modalities that include instructor-led courses as well as distance learning (DL) options. All are designed to enhance the competencies of Soldiers.

b. Making these credentialing programs available to Soldiers provides ways to advance their personal education and career aspirations and prepares them for future career and technical pursuits, both inside and outside of the DA. This helps strengthen the Nation by producing a well-educated citizenry and ensures the availability of a significant quality of life asset that enhances recruitment and retention efforts in an all-volunteer force.

c. The Credentialing Assistance (CA) Program is executed in accordance with Army Regulation 621-5, Army Continuing Education System, dated 28 October 2019.

2. Purpose:

a. This Memorandum of Agreement (MOA) articulates the commitment and agreement Vendors provide to the DA by accepting funds via the DA's CA Program in exchange for resources such as preparatory courses and examinations that lead to civilian industry credentials and licensures.

b. This MOA is not an obligation of funds, guarantee of program enrollments by United States (U.S.) Army personnel or a guarantee for Department of Defense (DoD) installation access.

c. This MOA covers courses delivered by Vendors through all modalities. These include, but are not limited to, classroom instruction, distance education (e.g., web-based, CD-ROM, or multimedia) and correspondence courses.

d. This MOA includes training, preparatory courses, exam, books, materials, and fees in support of the CA Program for U.S. Army personnel.

e. This MOA articulates governing authorities and instructions:

(1) Eligibility of DA recipients is governed by federal law, DA policies, regulations, and fiscal constraints.

(2) Programs provided to Soldiers using CA on DoD installations outside of the U.S. will be operated in accordance with guidance from Section 1212 of Public Law 99-145, as amended by Section 518 of Public Law 101-189; and under the terms of the Tri-Services contract currently in effect.

f. This MOA is subject at all times to federal law and the rules, guidelines, and regulations of the DoD. Any conflicts between this MOA and such federal law, rules, guidelines, and regulations will be resolved in favor of the federal law, rules, guidelines, or regulations.

3. Vendors (including certificate and degree-granting academic institutions) Requirements for CA:

Vendors must:

a. Sign and adhere to the requirements of this MOA prior to being eligible to receive CA payments.

b. Those Vendors that are currently doing business with the DA in regard to CA will sign this MOA at the request of the DA:

(1) The DA CA MOA is required for a Vendor to participate in the DA CA Program. An "Installation MOA" (which is separate from this MOA) is only required if the Vendor is operating on a DoD installation.

(2) Vendors must comply with this MOA and all DoD installation requirements imposed by the Installation Commander if the Vendors have been approved to operate on a particular post. Vendors failing to comply with the requirements set forth in this MOA may receive a letter of warning, be denied the opportunity to establish new programs, have their MOA terminated, be removed from the DoD installation, and may have the approval of the issuance of CA withdrawn by the DA.

c. Comply with the regulatory guidance provided by the DA.

d. Comply with state authorization requirements consistent with regulations including Title 34 C.F.R. 600.9. Academic institutions participating in the CA program must meet all State laws as related to distance education.

e. Designate a point of contact (POC) or office for training and financial advising, including access to disability counseling, to assist Soldiers with completion of training and with job search activities (if applicable).

f. The POC will have a basic understanding of the Army CA Program.

g. The POC does not need to be exclusively dedicated to providing these services and, as appropriate, may refer the Soldier to other individuals with an ability to provide these services related to the Army CA Program.

h. Before offering, recommending, arranging, signing-up, dispersing, or enrolling Soldiers for private student loans, Soldiers must be provided access to a financial aid advisor who will offer appropriate counseling.

i. Have policies in place compliant with program integrity requirements related to restrictions on misrepresentation, recruitment, and payment of incentive compensation. This applies to the Vendor itself and its agents including third party led generators, marketing firms, or companies that own or operate the Vendor. As part of efforts to eliminate unfair, deceptive, and abusive marketing aimed at Soldiers, Vendors will:

(1) Ban inducements, including any gratuity, favor, discount, entertainment, hospitality, loan, transportation, lodging, meals, or other item having a monetary value of more than a de minimis amount, to any individual or entity, or its agents including third party lead generators or marketing firms other than salaries paid to employees or fees paid to contractors in conformity with all applicable laws for the purpose of securing enrollments of Soldiers or obtaining access to CA funds. Vendor-sponsored scholarships or grants and tuition reductions available to military students are permissible and must be identified on the Soldier's itemized price quote.

(2) Refrain from providing any commission, bonus, or other incentive payment based directly or indirectly on securing enrollments or federal financial aid (including CA funds) to any persons or entities engaged in any student recruiting, admission activities, or making decisions regarding the award of student financial assistance.

(3) Refrain from high-pressure recruitment tactics such as making multiple unsolicited contacts (three or more), including contacts by phone, email, or in-person and engaging in same-day recruitment and registration for the purpose of securing Soldier enrollments.

j. Refrain from automatic program renewals, bundling multiple credentials, or enrollments. The DA must approve each course, exam, and/or materials enrollment before the start date of the course (payment of each may sometimes be delayed due to certain circumstances such as continuing resolution and/or backlog of CA requests). The vendor may not allow the Soldier to start a course/exam until the payment has been made by DA CA Billing Office.

k. Disclose all basic information about the Vendor's programs and costs, including tuition and other charges to the Soldier. This information will be made readily accessible without requiring the Soldier to disclose any personal or contact information.

l. Before enrollment, provide Soldier with information on “drop/add,” withdrawal, and readmission policies and procedures to include information on the potential impact of military duties, e.g., unanticipated deployments or mobilization, activation, and temporary duty assignments on the student’s training status and financial responsibilities. For example, a Soldier’s military duties may require relocation to an area where he or she is unable to maintain consistent computer connectivity with the Vendor that could have implications for the Soldier’s enrollment status. This information will also include an explanation of the Vendor’s grievance policy and process. The Vendor may not extend the Soldier’s course or exam unless it is granted by the Army CA Program Office (ACAPO) team.

4. CA Program Requirements for Vendors- Not waiverable:

a. Vendor participants are required to have been in business no less than two (2) years prior to submitting an application for participation in the Army CA Program. Vendor length of business status will be verified via the SAM.gov platform.

b. Vendor must have a valid and current Commercial And Government Entity (CAGE) Code.

c. Vendor must have a valid and current business license.

d. Training Course Enrollment Information: The Vendor agrees to provide the Soldier customized quotes (with the exception of Pearson Vue, CompTIA, or IBSC), training enrollment, withdrawal, cancellation, certificates of completion or failure, verification of completion/grade.

e. Vendor agrees to add pass/fail grades into the ArmyIgnitED system with the exception of Pearson Vue or CompTIA exams, or for Vendors who sell Pearson Vue or CompTIA exams (Soldier will upload this in the ArmyIgnitED system). This will be completed within 30 days of the end date selected by the Soldier.

f. Soldiers must be provided a certificate of completion. Information captured on the certificate of completion will have the Soldier’s name, the course or exam taken, the course or exam start date and end date, the vendor’s name, pass or fail status, signature of the Vendor and the date it was signed.

g. Vendor must have a website (this must be your organization's URL that Soldiers can view). Please do not add URLs for other organizations or third-party vendors.

h. Payment will only be made by the CA Billing Office via Government Credit Card (Visa). Vendor agrees to accept this form of payment until further notice.

i. Vendor will not require Soldiers to provide funds to secure a slot, registration, books, fees, etc., up front. Vendor understands the ACAPO provides payment not the Soldier.

j. Vendor agrees to refund the Army should the Soldier be placed on deployment orders or for an emergency situation (these may not be the only conditions for

reimbursement). ACAPO will notify the vendor organization should this occur. Vendor agrees to never refund the Soldier funds provided by the Army.

k. Under Title 20, U.S. Code, Section 1232g (also known as “The Family Educational Rights and Privacy Act” and hereinafter referred to as “FERPA”), DoD recognizes that Vendors are required to obtain consent before sharing personally identifiable non-directory information with a third party. Soldiers must authorize the Vendor to release and forward training enrollment information required to DA prior to approval of enrollment using CA.

l. If a Vendor wants to ensure confidentiality during the transmission of data to the third party, then the Vendor can contact the DA ACAPO team at usarmy.knox.hrc.mbx.tagd-aces-credentialing-program@army.mil to discuss security, and confidentiality concerns prior to transmitting information.

5. Prohibited administration of CA:

a. Courses that are provided as a part of the Career Skills Program (CSP) will not be paid for with Army CA funding. Vendors will not provide itemized price quotes or courses for Soldiers enrolled with their company as a part of the CSP to be used toward CA funding.

b. CA will not be used to fund unit specific courses.

6. Approved and CA Program Eligible Courses:

a. Approved Courses: CA requests must be submitted between 45-90 days prior to the start date of either the course or the exam. CA requests must not be submitted earlier than 90 days, prior to the start date of either the course or the exam. Additionally, CA requests cannot be submitted within 44 days prior to the start date of either the course or the exam. If an eligible Soldier decides to use CA, Vendors will enroll them only after the CA is approved (paid) by the CA Billing Office. Soldiers will be solely responsible for all costs without this prior approval. This requirement does not prohibit a Vendor from pre-registering a Soldier in a course to secure a slot. If a Vendor enrolls the Soldier before the CA Billing Office approves the CA request, then the Soldier could be responsible for the total cost of the request. All CA requests must be requested and approved prior, or on, the start date of the course (some exceptions apply where the request may be funded after the start date). If a Soldier “self-reports” eligibility and the DA has not approved the funding, then the Soldier will be solely responsible for all costs, not the DA.

b. CA Eligible Courses: Courses will be considered eligible for CA if they are:

(1) Prerequisites for a credential.

(2) Courses and exams requested by the Vendor to the ACAPO must be associated with an approved credential on the Army COOL website. Vendors must provide verification that training offered meets the requirements of the Credentialing

Bodies associated with the credential(s) to ensure validity and accuracy. If it is not, statistics must be provided to verify the training does lead to the credentialing exam.

(3) Use of Financial Aid with CA: DoD personnel are entitled to consideration for all forms of financial aid that Vendors make available to other students. Vendor's financial aid officers will provide information and application processes for Title IV student aid programs, scholarships, fellowships, grants, loans, etc., to DoD CA recipients (if applicable).

c. Administration of CA:

(1) The DA will provide CA in accordance with DA regulations.

(2) Vendors will comply with these requirements for the return of CA funds.

(3) Return any CA Program funds directly to the DA, not to the Soldier.

(4) Up to the start date, return all (100 percent) CA funds to DA when Soldier does not:

a. Begin attendance at the training institution; or

b. Start a course, regardless of whether the Soldier starts other courses.

c. Return any CA funds paid for a course that is cancelled by the Vendor.

d. Vendors must have a policy that returns any unearned CA funds on a proportional basis through at least the 60 percent portion of the period for which the funds were provided. CA funds are returned based upon when a Soldier stops attending. In instances when the Soldier stops attending due to a military service obligation, the Vendor will work with the affected Soldier to identify solutions that will not result in a student debt for the returned portion. ACAPO must be notified of the solution before it can be implemented.

(5) Under no circumstance will the training costs charged to a Soldier exceed the rate charged to nonmilitary students, unless agreed upon in writing by both the Vendor and ACAPO.

(6) Vendor will provide the total cost for each program/credential to the DA on an annual basis. Cost will include tuition, any required books, required materials, required fees, etc. Changes for any training cost outside of the annual cycle must be provided with justification to the DA as soon as possible, but not fewer than 90 days prior to implementation. DA will approve/disapprove the changes.

(7) Cancellations: Vendors are responsible for immediately notifying Soldiers of course cancellations for both classroom and DL courses.

6. Reporting Requirements and Performance Metrics:

a. Upon request, the Vendor will provide reports via electronic delivery on all DA CA recipients for programs and courses offered to Soldiers. This includes, but is not limited to, CA transactions, final course grades, or completion records to include incompletes and withdrawals. If applicable, Vendors providing face-to-face courses on a DoD installation will provide a class roster to the responsible education advisor. The class roster will include information such as the name of the instructor, first and last name of each student (military and non-military), course title, class meeting day(s), start and ending time of the class, and class location (e.g., building and room number).

b. All reporting and transmitting of this information will be done in conformity with all applicable privacy laws, including FERPA.

c. Vendors will respond to these requests in a timely fashion based on the specific nature and scope of the information requested.

7. The DA may evaluate the Vendor's overall effectiveness in administering its program, courses, and customer satisfaction to the DoD. A written report of the findings will be provided to the Vendor. The Vendor will have 90 calendar days to review the report, investigate if required, and if needed provide a written response to the findings.

8. The ACAPO may request reports from a Vendor at any time, but not later than two years after termination of the MOA with such Vendor. Responses to all requests for reports will be provided within a reasonable period of time generally within 14 calendar days. Vendor response time will depend on the specific information sought by the ACAPO in the report.

9. Requirements and Responsibilities for the Delivery of on Installation CA Programs and Services:

a. The requirements in this section pertain to Vendors operating on a DoD installation. An installation MOA:

(1) Is required if a Vendor is operating or attempting to operate on a DoD installation.

(2) Contains only the installation-unique requirements coordinated by the responsible education advisor, with concurrence from the Education Services Officer, and approved by the Installation Commander or designated representative.

b. Vendors will:

(1) Agree to have a separate installation MOA if they have a DA agreement to provide on-installation courses or degree programs.

(2) Comply with the installation-unique requirements in the installation MOA.

(3) Agree to coordinate training programs offered on the DoD installation with the responsible education services officer, acting on behalf of the installation commander, prior to the opening of classes for registration.

(4) If Soldiers are requesting courses for a specific unit, the Vendor is required to request installation access even if the course is virtual.

(5) Admit candidates to the Vendor's on-installation programs at their discretion; however, priority for registration in installation classes will be given in the following order:

(a) Soldiers.

(b) Federally funded DoD Civilian employees.

(c) Eligible adult Family members of service members and DoD Civilian employees.

(d) Military retirees.

(e) Non-DoD personnel.

(6) Provide the responsible education advisor a tentative annual schedule of course offerings to ensure that the training needs of the military population on the DoD installation are met and to ensure no course or scheduling conflicts with other on-installation programs.

(7) Provide instructors for their DoD installation courses who meet the criteria established by the Vendor to qualify for employment as an instructor/faculty member at the main training center.

(8) Inform the responsible advisor about cancellations for classroom-based classes on DoD installations.

c. The designated installation representative (usually the education advisor) will be responsible for determining the local CA Program needs for the serviced military population and for selecting the off-duty programs to be provided on the DoD installation, in accordance with the DA policies. The Army, in conjunction with the Vendor, will provide support services essential to operating effective programs. All services provided will be commensurate with the availability of resources (personnel, funds, and equipment). This support includes:

(1) Classroom and office space, as available. The Army will determine the adequacy of provided space.

(2) Repairs as required to maintain office and classroom space in "good condition" as determined by the Army, and utility services for the offices and classrooms of the educational institution located on the DoD installation (e.g., electricity, water, and heat).

(3) Standard office and classroom furnishings within available resources. No specialized equipment will be provided.

(4) Janitorial services in accordance with DoD installation facility management policies and contracts.

d. The Army reserves the right to disapprove DoD installation access to any employee or agent of the Vendor employed to carry out any part of this MOA.

e. Operation of a privately owned vehicle by Vendor employees or agents on the installation will be governed by the DoD installation's policies.

10. Review, Modifications, Signatures, Effective Date, Expiration Date, and Cancellation Provision:

a. Review: The signatories (or their successors) will review this MOA periodically in coordination with the DA, every 2 years to consider items such as current accreditation status, updated program offerings, and program delivery services.

b. Modifications to this MOA will be in writing and except for those required due to a change in state or federal law, will be subject to approval by both of the signatories below or their successors.

c. Signatures: The authorized signatory for the DA will be designated by Army University. The authorized signatory for the Vendor will be a representative of the Vendor's Leadership Hierarchy, i.e. CEO, Owner, President, etc., as determined by the Vendor.

d. Effective Date: This MOA is effective on the date of the Army University designee signature.

e. Expiration Date: This MOA will expire five years from the effective date unless terminated or updated prior to that date in writing by the DA or the Vendor.

f. Cancellation Provision: This MOA may be cancelled by either DA or the Vendor 30 days after receipt of the written notice from the cancelling party. In addition, termination and suspension of an MOA with a Vendor may be done at any time for failure to follow a term of this MOA or misconduct.

FOR HEADQUARTERS DEPARTMENT
OF THE ARMY:

Signature and printed name

Title of Signatory _____

Agency Name _____

Wes Smith, Ed. D., GS15,
Director, ACCESS

Auth Signatory for DA ArmyU Designee

(Date)

(Date)